IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E"

NOTICE OF FACTUAL IMPOSSIBILITY AND PLAINTIFFS' CONTRADICTORY ASSERTIONS REGARDING FUNDS ORIGINATING IN TOKE OIL AND GAS S.A.

COMES NOW Defendant, and respectfully submits this Notice to clarify, on the record, a series of irreconcilable factual contradictions and legal impossibilities embedded within Plaintiffs' core allegations. The facts as established in the record demonstrate that the claims advanced by Plaintiffs are not only meritless, but internally self-defeating.

I. PLAINTIFFS CLAIM OWNERSHIP OF FUNDS THEY DID NOT EARN, TRANSFER, OR OWN

1. Plaintiffs—DeepGulf, Inc. and Toke Oil and Gas S.A.—allege that Defendant misappropriated $1,304,764.22, representing funds allegedly owed to DeepGulf, Inc.

2. Plaintiffs seek treble damages under Florida's civil theft statute (Fla. Stat. § 772.11), for a total demand of $3,914,292.66.

3. In fact, this entire sum was originally paid by Toke Oil and Gas S.A. to its two Australian East Timorese directors from Toke's own earnings in Timor-Leste.

4. DeepGulf, Inc. had no legal or operational control over these funds and cannot retroactively claim them as its own.

II. VOLUNTARY PRIVATE TRANSFER DOES NOT GIVE RISE TO A PLAINTIFF'S CLAIM

5. After receiving his share, one of the Australian East Timorese directors voluntarily transferred a portion of his personal funds to Defendant to assist with tax obligations incurred as a result of DeepGulf, Inc.'s prolonged failure to pay the salary contractually owed to Defendant.

6. This was a private and discretionary gesture of goodwill, not requested by Defendant, and certainly not a form of improper inducement or quid pro quo. In fact, at the time of the transfer:

- Defendant was ensuring that DeepGulf, Inc. received a disproportionately large share of revenue in excess of its contractual entitlement;

- The two Australian East Timorese founders, including the one who made the transfer, were receiving substantially less than their rightful share;
- Any suggestion that the gesture constituted a favor in exchange for influence is absurd on its face, as the transferor's own entitlement had already been substantially diminished, while DeepGulf, Inc. was being disproportionately enriched.

7. Plaintiffs now seek to recharacterize that independent act as an act of civil theft against DeepGulf, Inc., despite DeepGulf, Inc.'s complete non-involvement in either the initial payment or the subsequent internal transfer.

III. DEEPGULF, INC. RECEIVED MORE THAN THE AMOUNT IT NOW CLAIMS WAS STOLEN

8. While Plaintiffs assert theft of $1,304,764.22, the record shows that DeepGulf, Inc. received $1,457,614.45 in revenue transfers and assigned income—$152,850.23 more than the total amount it now claims was misappropriated.

9. These funds were transferred by Defendant in good faith, voluntarily, and without legal obligation. If anything, DeepGulf, Inc. was overcompensated.

10. Plaintiffs now advance the absurd position that they were simultaneously overpaid and victimized.

IV. TOKE OIL AND GAS S.A.'S PARTICIPATION AS PLAINTIFF DESTROYS THE CLAIM'S LEGITIMACY

11. Toke Oil and Gas S.A. is joined as a co-Plaintiff. Yet it was Toke Oil and Gas S.A. itself—through its own signatories and accounts—that made the disbursements in question.

12. Toke Oil and Gas S.A. cannot simultaneously act as Plaintiff while repudiating its own prior authorized transactions. To permit such a position would collapse corporate coherence and render every past payment potentially reversible via litigation fiction.

V. DEEPGULF, INC.'S 2012 STOCK PURCHASE PROVES IT KNEW TOKE OIL AND GAS S.A. WAS NOT A SUBSIDIARY

13. In 2012, DeepGulf, Inc. paid $100,000 to acquire 66.67% of shares in Toke Oil and Gas S.A..

14. That purchase was an unambiguous admission that Toke Oil and

Gas S.A. was not previously owned by DeepGulf, Inc., and that any revenue earned by Toke Oil and Gas S.A. prior to that point was not DeepGulf, Inc.'s property.

15. DeepGulf, Inc.'s attempt to retroactively claim 100% of that revenue—particularly funds disbursed to and by Toke Oil and Gas S.A.'s founders—is therefore facially fraudulent.

VI. PLAINTIFFS' THEORY REQUIRES REWRITING BASIC CORPORATE LOGIC

16. To accept Plaintiffs' theory, the Court would have to believe:

- That DeepGulf, Inc. owned Toke Oil and Gas S.A. retroactively;
- That all of Toke Oil and Gas S.A.'s revenue belonged to DeepGulf, Inc.;
- That private transfers or repayments from a Toke Oil and Gas S.A. founder to Defendant were theft against DeepGulf, Inc.;
- That Toke Oil and Gas S.A. can sue for money it paid willingly and documented; and
- That DeepGulf, Inc. was entitled to both the funds it received ($1,457,614.45) and those it did not, plus double damages.

17. This is not legal argument. It is an act of narrative invention designed to weaponize the court against a partner and shareholder.

VII. RETALIATORY MOTIVES AND PERSONAL ENRICHMENT MASKED AS CORPORATE INJURY

18. While DeepGulf, Inc. postures as a defrauded entity, the record shows that:

- Its Chairman, Rus Howard, raised $657,000 in investor capital;
- Of this, he spent $596,328.82 (91%) on:
  - ✓ Personal office rental and operations;
  - ✓ Salaries to himself and his secretaries, including his own daughter;
  - ✓ An unexplained payment of $100,000 for 66.67% of Toke Oil and Gas S.A.

plus additional overhead for unrelated private business conducted out of the same office.

19. In contrast, Defendant's operations were entirely self-sustained, producing contract-based cash flow before capital injection.

20. Had Defendant never associated with Mr. Howard and co-founded DeepGulf, Inc., an entity that proved inconsequential in all projects:

- He would have procured the same contracts through his former online entity, since the patented technology he had authored and had attracted the interest of East Timor long predated DeepGulf, Inc.;

- He would have been paid accordingly;
- He would have retained his private consulting income;
- He would have avoided years of meritless litigation and large associated legal costs;
- He would have retained exclusive rights to his intellectual property;
- He would not have allowed his patents to lapse, as did DeepGulf, Inc.;
- And he would most likely be financially stable rather than destitute at this point.

21. The only concrete benefit received from DeepGulf, Inc. was a U.S. H1-B visa—entirely inapplicable to the Timorese and Asian context in which the contracts were executed. Said visa was granted under the express condition that DeepGulf, Inc. would pay Defendant's full salary during the visa's term, and this representation was supported by a personal guarantee from Chairman Rus Howard, backed by his own real estate, and submitted to U.S. immigration authorities.

22. Those requisites and the guarantee were never disclosed to Defendant, and only came to light during discovery in 2018—presumably by mistake. Of the twelve years during which the visa was active, as many as seven were completely unpaid by DeepGulf, Inc. This not only violated federal representations but ensured that the one supposed benefit of Defendant's association with DeepGulf, Inc.—the right to live in the U.S. when not working in Asia and Australasia—was rendered hollow and ultimately weaponized against him.

23. That visa was later used against Defendant: when it was not renewed, Howard used Defendant's forced departure from the United States as pretext to sever ties, blame Defendant for his own failures, and file retaliatory lawsuits.

VIII. DEEPGULF, INC.'S $100,000 PAYMENT FOR AN EMPTY SHELL INDICATES A CONCEALED MOTIVE

24. According to Plaintiffs' own pleadings and accounts (obtained under threat of subpoena), DeepGulf, Inc. paid $100,000 in 2012 to acquire 66.67% of shares in Toke Oil and Gas S.A.—an entity which at the time:

- Held no assets or contracts;
- Was not conducting business any longer;
- And was, in all material respects, a dormant legal shell.

25. This payment was commercially irrational. Defendant, who held a 33.33% equity stake, had previously transferred his share to DeepGulf, Inc. for **$1**, purely to avoid conflict of interest.

26. The two Australian East Timorese founders—who created the opportunity—had no apparent reason to demand $100,000, nor is any negotiation record or valuation presented.

27. The only plausible explanation is that the $100,000 payment—unexplained, unnegotiated, and commercially irrational—served a concealed legal or bureaucratic function, possibly including:

- Fulfilling documentation requirements for an EB-1C visa strategy;
- Creating retroactive paper control over Toke Oil and Gas S.A. for future legal leverage;
- Establishing a basis to claim ownership over past revenues earned independently.

28. Given that Rus Howard is an Ivy League MBA, it is implausible that such a purchase was an oversight. It was likely intentional, and calculated to enable future fictitious claims.

IX. FICTITIOUS PLAINTIFF AND PROCEDURAL MANIPULATION VIA TOKE OIL AND GAS S.A.

29. Among the co-Plaintiffs is Toke Oil and Gas S.A.**,** a foreign entity that, by the time the suit was filed in 2018, had:

- No known business address;
- No tax returns;
- No active operations;
- No bank account;
- And no visible legal or administrative existence.

30. Yet this defunct entity is styled as co-Plaintiff in order to bring claims against Defendant for actions allegedly committed by Toke Oil and Gas S.A.'s own directors—including the Australian East Timorese founders—nearly a decade earlier, during Toke Oil and Gas S.A.'s active period.

31. These acts include the disbursement of Toke Oil and Gas S.A.'s own revenue, under the authority of its own officers, to its own directors. Defendant was one of three directors at the time, and all distributions were made in accordance with Toke Oil and Gas S.A.'s internal governance.

32. In a nutshell, a foreign corporation (Toke Oil and Gas S.A.), six years after being acquired by a U.S. corporation (DeepGulf, Inc.), is suing one of its directors for the entire amount of income that was distributed years earlier to all (100%) of its pre-acquisition shareholders.

33. This is akin to Mobil Oil Corporation, years after its 1999 acquisition by Exxon Corporation, suing one of its former directors for triple the total dividends paid to all Mobil shareholders before 1999—while disowning its own corporate acts and pretending it always belonged to Exxon.

34. Toke Oil and Gas S.A. now, absurdly, claims that those acts constituted wrongdoing against itself—yet:

- It sues only Defendant, not its other two directors who received the bulk of the funds;
- It provides no explanation for this selective targeting;
- And it ignores its own institutional role in authorizing and executing the transfers.

35. The inclusion of Toke Oil and Gas S.A. as co-Plaintiff had a second, more serious consequence: it served as the mechanism by which this case was remanded from federal court—after a loss for Plaintiffs—back to Florida state court.

36. That remand occurred because the inclusion of a foreign Plaintiff (Toke Oil and Gas S.A.) destroyed complete diversity jurisdiction—despite the fact that Toke Oil and Gas S.A.:

- Was by that time not properly constituted or domiciled anymore;
- Had no genuine stake in the claims;
- Filed a lawsuit without any sort of Board authorization, Defendant being one of only two directors, the other being Rus Howard;

37. Moreover, all the underlying events alleged against Defendant occurred no later than 2014, rendering the Complaint time-barred under the applicable four-year statute of limitations (Fla. Stat. § 95.11), which was plainly and repeatedly violated.

38. Defendant has raised these objections repeatedly, noting that the named foreign Plaintiff was a fictitious party with no ability to sue. Yet these objections—including the statute of limitations bar—were ignored, and the litigation proceeded under a procedural fiction that continues to vitiate the legitimacy of the case.

X. THEORETICAL REBUTTAL: EVEN IF THE TRANSFER WERE UNAUTHORIZED OR UNLAWFUL, DEEPGULF, INC. WOULD HAVE NO CLAIM

39. The foregoing sections have shown that the transfer of funds at issue was legal, authorized, and non-injurious to Plaintiffs. Nonetheless, for the sake of completeness, Defendant offers the following purely theoretical rebuttal, without admitting any factual or legal basis to Plaintiffs' allegations.

40. Even if, *hypothetically*, the $345,000 transfer from a Toke Oil and Gas S.A. director to Defendant were deemed unauthorized or improper:

- The funds originated from Toke Oil and Gas S.A., a foreign entity;
- The transferor was a Timorese-Australian national;
- The recipient (Defendant) is a French citizen;
- The transaction occurred in East Timor, using funds earned on East Timorese projects;
- And the funds were wired to a personal French bank account located in France.

41. As such, any claim of misconduct—however strained—would fall exclusively within the purview of East Timorese authorities. U.S. courts do not have extraterritorial jurisdiction over alleged misconduct between two foreign nationals using foreign funds in a foreign country, especially where the allegedly injured party (DeepGulf, Inc.) neither owned nor controlled the funds in question.

42. Moreover, even if the transaction were recharacterized as a "*bribe*" (which it was not), such a theory would collapse on its own terms:

- The alleged "*bribe*" resulted in DeepGulf, Inc. receiving more, not less—contradicting any suggestion of undue favoritism;
- The payor received no special advantage—in fact, his own share was reduced;
- No public duty or regulatory interference was involved;
- DeepGulf, Inc. suffered no cognizable injury, financial or otherwise.

43. In short, even under the most adverse and implausible interpretation, the proper venue would be East Timor, the only party with any potential sovereign interest. DeepGulf, Inc., a U.S. corporation with no proprietary link to the funds, has no standing to assert a civil theft claim under Florida law based on events, actors, and property wholly outside its domain.

44. Furthermore, if Plaintiffs genuinely believed the $345,000 payment to constitute a criminal act such as bribery, the proper recourse would not be a civil lawsuit filed by DeepGulf, Inc., but a criminal prosecution initiated by public authorities in East Timor. Bribery is not a private tort that generates a compensatory claim; it is a penal offense prosecuted by a sovereign state—not monetized by a third party. DeepGulf, Inc. neither paid the funds, owned the funds, nor suffered any legally cognizable injury from the alleged transaction. As such, its attempt to repurpose a hypothetical criminal allegation into a private civil recovery is procedurally incoherent and legally impossible.

45. Plaintiffs' own damages calculation reveals the speculative and opportunistic nature of their claims. They demand not only the $345,000 that was voluntarily transferred to Defendant by one of Toke's directors, but also the entire remaining $959,764.22 distributed to the other founders of Toke Oil and Gas S.A.—despite the fact that Defendant never received, controlled, or had any relationship to those funds. The sum total of $1,304,764.22 is then tripled without justification, as if civil theft occurred not through actual taking but through retrospective disagreement with corporate distributions. Even if this implausible theory were accepted, it would remain inexplicable why Defendant alone is targeted for recovery of funds he neither received nor had authority over, while the actual recipients are not sued. The demand thus becomes a punitive financial fiction: that Defendant should be held liable for 300% of monies paid to others under corporate authority in a foreign jurisdiction more than a decade ago, in 2010 and 2011—*before Toke Oil and Gas S.A. was even acquired by DeepGulf for $100,000*.

XI. CONCLUSION

This lawsuit is not grounded in fact, equity, or contract—but in retrospective invention designed to shift blame and obscure self-dealing. The Plaintiffs' claim to have been robbed of funds they never owned—while ignoring the large sums already received—is as offensive to logic as it is to equity.

WHEREFORE, Defendant respectfully asks the Court to:

- Take judicial notice of these contradictions;
- Reject Plaintiffs' claims as factually impossible and legally

incoherent;

- And deny any demand for damages rooted in the Plaintiffs' own contradictions and fictional accounting;

This Court should not permit a claim so untethered from corporate record, economic logic, or basic fairness.

Respectfully submitted on this 23rd day of June, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 23rd day of June, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzkowski